

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 26-005

**Amendments to Title 8, Chapter 4 Section 8-402 of the Chickasaw Nation Code
(Ballot Mailing to Voters)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously established rules and procedures for annual elections, and

WHEREAS, the Legislature desires to amend those rules and procedures.

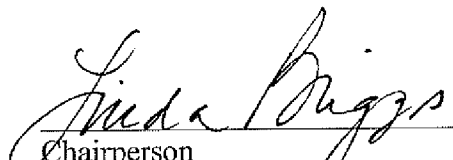
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 4 Section 8-402 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

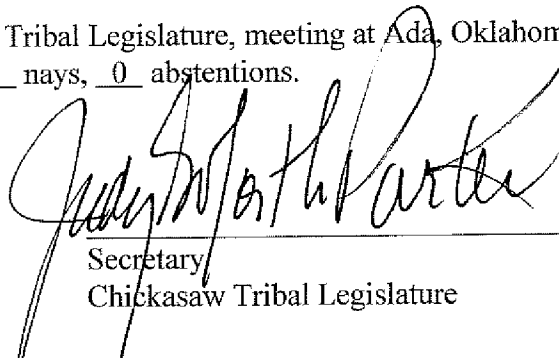
"SECTION 8-402

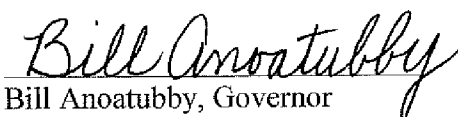
BALLOT MAILING TO VOTERS.

A. All official ballots shall be mailed to each qualified voter fifteen (15) days prior to ballot counting day; provided, however, that all ballots for qualified Voters who reside outside of the contiguous 48 states shall be mailed two (2) weeks prior to such mailing date using an expedited mail delivery service. The names on the outgoing envelopes shall be the same as appears on the Voter registration application."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 20, 2009, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 20 2009

CHICKASAW TRIBAL LEGISLATURE

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(Ballot Mailing to Voters)**

Explanation: This resolution amends a section in Title 8 of the Chickasaw Nation Code so that ballots to Chickasaw voters who reside outside of the contiguous 48 states will be mailed two weeks earlier than ballots mailed to Chickasaw voters who reside within the contiguous 48 states. Such ballots shall be sent utilizing an expedited mail service such as Express Mail, fast delivery by FedEx, UPS or DHL, or the like.

Presented By: Election Rules and Regulations Ad Hoc Committee
Steve Woods, Committee Chair